

OPTION AGREEMENT

This Option Agreement (“**Agreement**”) is made on December 24, 2025 (“**Execution Date**”), at Gurugram, Haryana, by and amongst:

1. **HORIZON INDUSTRIAL PARKS LIMITED**, a company incorporated under the Companies Act, 1956, having corporate identification number U60231MH2009PLC222156, permanent account number AACJ2346P, its registered office at One World Centre, Unit No. 1501B, Tower 1, 841, Jupiter Textile Mills, Senapati Bapat Marg, Mumbai – 400 013, Maharashtra, India and corporate office at Floor 16, Magnum Global Park, Tower 2, Golf Course Ext Road, Sector – 58, Gurugram – 122 011, Haryana, India (hereinafter referred to as “**HIPL**”, which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns);
2. **ASHISH AGRAWAL**, an Indian resident individual, with permanent account number AAKPA1677K and residing at Plot No.300, Opp. Hislop College, Chitanvis Marg, Civil Lines, Nagpur – 01 (hereinafter referred to as “**Ashish**”, which expression shall, unless repugnant to the context or meaning thereof, include his successors, executors, legal heirs, administrators, and permitted assigns);
3. **RAJESH STEEL INDUSTRIES PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 with permanent account number AAACR6147E and having its registered office at Block No. 402, M.G. House, Ravindra Tagore Marg, Civil Lines, Nagpur, Maharashtra – 440 001 (hereinafter referred to as “**Rajesh Steel**”, which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns); and
4. **ALOTRONIX WAREHOUSING SEVEN PRIVATE LIMITED**, a company incorporated under the Companies Act, 2013 and having its registered office at Tower 1, 15th Floor, 1501 B, One World Centre, Senapati Bapat Marg, Prabhadevi, Delisle Road, Mumbai, Maharashtra – 400 013 (hereinafter referred to as the “**Company**”, which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns).

Ashish and Rajesh Steel shall hereinafter, collectively, be referred to as the “**Option Holders**” and individually as an “**Option Holder**”. The Option Holders, HIPL and the Company shall hereinafter, collectively, be referred to as “**Parties**” and individually, as a “**Party**”.

WHEREAS:

- (A) The Company is the concessionaire for the Project (*as defined hereinafter*) under the concession agreement dated August 29, 2024 executed between the CWC (*as defined hereinafter*) and the Company (“**Concession Agreement**”). The Company is a wholly owned subsidiary of HIPL.
- (B) The authorized share capital of the Company as of the Execution Date is Rs. 10,00,000/- (Rupees Ten Lakhs only) consisting of 1,00,000 (one lakh) Equity Shares (*as defined hereinafter*). The paid-up share capital of the Company is Rs. 10,000/- (Rupees Ten Thousand only) which consists of 1,000 (one thousand) Equity Shares. The shareholding pattern of the Company as of the Execution Date is set out in **Schedule I**.
- (C) The Company and HIPL have agreed to grant the Option Holders an option to acquire 24% (twenty-four per cent) of the share capital of the Company (on a fully diluted basis) through a combination of fresh issuance of Equity Shares by the Company and sale of existing

Equity Shares by HIPL.

- (D) The Parties are now entering into this Agreement to record the mutual rights and obligations and terms and conditions in relation to the option made available to the Option Holders and other matters in connection therewith.

THE PARTIES HERETO AGREE AS FOLLOWS:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, except where the context otherwise requires, (i) capitalised terms defined by inclusion in quotations and/or parenthesis have the meanings so ascribed; and (ii) the following words and expressions shall have the following meanings:

“Affiliate” shall mean, with respect to any Person, any other Person, which, directly or indirectly, Controls, is Controlled by or is under common Control with the first named Person, whether acting individually or in concert, including any right arising by virtue of shareholding, management rights, Contract or otherwise, provided that the Option Holder shall not be considered an Affiliate of the Company or HIPL, or *vice versa*, for the purposes of this Agreement. If such Person is an individual, the term **“Affiliate”** shall include a Relative of such individual;

“Aggregate Option Consideration” shall have the meaning ascribed to it in Clause 2.1;

“Anti-Corruption Laws” shall mean any anti-corruption and anti-bribery Law, including the (Indian) Prevention of Corruption Act, 1988, the U.S. Foreign Corrupt Practices Act of 1977, and the United Kingdom Bribery Act of 2010, in each case as amended, to the extent applicable to such Party;

“Anti-Money Laundering Laws” shall mean the: (a) (Indian) Prevention of Money Laundering Act, 2002, as amended and any related or similar Law issued, administered or enforced by any Governmental Authority in India; and (b) all applicable financial record keeping and reporting requirements and prevention of money laundering statutes (including applicable rules and regulations thereunder) and all applicable rules, regulations or guidelines in which jurisdiction such Party is established, incorporated or otherwise conducts business or owns assets, and any related or similar rules, regulations or guidance administered or enforced by any Governmental Authority of such jurisdiction;

“Business Days” shall mean days (other than Saturday or Sunday) on which banks are generally open for operation in Singapore, Mumbai and Nagpur, for all other purposes;

“Contract” shall mean, with respect to a Person, any agreement, contract, deed, subcontract, lease, instrument, note or binding commitment or undertaking of any nature, whether express or implied;

“Control” (including with correlative meaning, the terms **“Controlled by”**, **“Controlling”** and **“under common Control with”**) shall mean, with respect to a Person, the acquisition or control, directly or indirectly, of more than 50% (fifty per cent) of the voting rights or of the issued share capital of such Person or the right to appoint and/or remove all or the majority of the members of the board of directors or other governing body of such Person, the power to direct or cause the direction of the management, to exercise significant influence on the management or policies of such Person, whether obtained directly or indirectly, and whether obtained by ownership of share capital, the possession of voting

rights, through Contract or otherwise;

“Concession Agreement” shall have the meaning ascribed to it in Recital A;

“CWC” shall mean the Central Warehousing Corporation, a Central Public Sector Enterprise, established under the Warehousing Corporation Act, 1962 under the aegis of the Ministry of Consumer Affairs, Food and Public Distribution and having its offices at 4/1 Siri Institutional Area, Hauz Khas, New Delhi 110 016;

“Definitive Documents” shall have the meaning ascribed to it in Clause 3.3(iii);

“Dispute” shall have the meaning ascribed to the term in Clause 9.1;

“Equity Shares” shall mean the equity shares of the Company having face value of Rs. 10/- (Rupees Ten only) each;

“Governmental Authority” shall mean any nation or government or any province, state or any other political subdivision thereof, any entity, authority or body exercising executive, legislative, judicial, regulatory or administrative functions of or pertaining to government, including any government authority, agency, department, board, commission or instrumentality, of any other jurisdiction in which a party to this Agreement is resident, any court, tribunal or arbitrator and any securities exchange or body or authority regulating such securities exchange;

“Government Official” shall mean: (a) an officer, employee, agent or any person acting in an official capacity for or on behalf of a government, including its departments, agencies, instrumentalities, quasi- or partially-government owned or controlled entities, or recently privatised government entities; (b) an officer or employee of an international organisation (e.g., World Bank, United Nations, Japan Bank for International Cooperation or International Monetary Fund); or (c) an officer or employee of a political party or any party official, or a candidate for political office;

“Improper Payment” shall mean any money, property, contribution, gift, entertainment or other thing of value provided with the intent to obtain or secure an undue business advantage;

“Information” shall mean: (a) the existence and terms of this Agreement; (b) any information relating to: (i) the terms and conditions contained in this Agreement; (ii) the transactions contemplated by or pursuant to this Agreement; and (iii) the negotiations leading to this Agreement; (c) any actions taken, decisions made, or steps undertaken pursuant to this Agreement, and any information relating thereto; and (d) any information disclosed by one Party to the other under or pursuant to this Agreement;

“Net Book Value” means the aggregate of: (a) the paid-up equity share capital of the Company; (b) the aggregate face value of all outstanding compulsorily convertible debentures and other compulsorily convertible securities of the Company; and (c) the balance in its securities premium account of the Company, in each case as reflected in the standalone balance sheet of the Company as at the date of the relevant issuance and allotment of the Subscription Shares or transfer of the Sale Shares, as the case may be, prepared by the Company in accordance with the generally accepted accounting principles in India;

“Law” shall mean any statute, law, regulation, ordinance, code, rule, judgment, notification, rule of common law, Order, decree, bye-law, Governmental Approval, directive, guideline, requirement or other governmental restriction, or any similar form of

decision of, or determination by, or any interpretation, policy or administration, each having the force of law issued by any Governmental Authority having jurisdiction over the matter in question, in each case, whether in effect as of the Execution Date or thereafter;

“Option” shall have the meaning ascribed to it in Clause 2.1;

“Option Exercise Notice” shall have the meaning ascribed to it in Clause 3.1;

“Option Term” shall have the meaning ascribed to it in Clause 2.2;

“Project” shall have the meaning ascribed to it under the Concession Agreement;

“Person” shall mean any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, union, association, Governmental Authority or any agency or political subdivision thereof or any other entity that may be treated as a legal person under applicable Law;

“Relative” shall have the meaning as set forth in the Companies Act, 2013 and shall include the meaning ascribed to it under Accounting Standard 18 prescribed by the Institute of Chartered Accountants of India or any successor accounting standard;

“Sanctions Laws” shall mean all the economic or financial sanctions, trade and import and export-related Laws, regulations or embargos implemented or enforced by the United States (including U.S. Treasury Department, U.S. Commerce Department and U.S. State Department), the European Union, His Majesty’s Treasury, the United Nations, the Reserve Bank of India or any other Governmental Authority to whose jurisdiction a Party is subject;

“SSPA” shall have the meaning ascribed to it in Clause 3.3(i);

“SHA” shall have the meaning ascribed to it in Clause 3.3(ii);

“SIAC” shall have the meaning ascribed to it in Clause 9.1(i); and

“Termination Notice” shall have the meaning ascribed to it in Clause 5.4.

1.2 Interpretation

- (i) Unless the context of this Agreement otherwise requires:
 - (a) Words using the singular or plural number also include the plural or singular number, respectively;
 - (b) Words of any gender are deemed to include the other gender;
 - (c) Reference to the word “include” (or any derivative thereto) shall be construed without limitation;
- (ii) The terms “hereof”, “herein”, “hereby”, “hereto” and derivative or similar words refer to this entire Agreement or specified Clauses of this Agreement, as the case may be;
- (iii) The term “Clause”, “Schedule” and “Annexure” refers to the specified Clause, Schedule or Annexure, respectively, of this Agreement;

- (iv) References in this Agreement to any legislation or Law or any policy issued by a Governmental Authority or to any provision thereof shall be construed as meaning and including references to:
 - (a) any statutory modification, consolidation or re-enactment made after the Execution Date and for the time being in force;
 - (b) all statutory instruments or orders made pursuant to a statutory provision and any subordinate legislation made from time to time; and
 - (c) any statutory provisions of which these statutory provisions are a consolidation, re-enactment or modification;
- (v) The Recitals, the Schedules and Annexure hereto shall constitute an integral part of this Agreement;
- (vi) The index hereto and headings and titles herein are used for convenience of reference only and shall not affect the construction of this Agreement;
- (vii) Reference to any document includes an amendment or supplement to, or replacement or novation of, that document, but disregarding any amendment, supplement, replacement or novation made in breach of this Agreement;
- (viii) Any word or phrase defined in the body of this Agreement as opposed to being defined in Clause 1.1 (*Definitions*) above shall have the meaning assigned to it in such definition throughout this Agreement, unless the contrary is expressly stated or the contrary clearly appears from the context;
- (ix) When any number of days is prescribed in any document, the same shall be reckoned exclusively of the first and inclusively of the last day unless the last day does not fall on a Business Day, in which case the last day shall be the next succeeding day which is a Business Day;
- (x) Time is of essence in the performance of the Parties' respective obligations. If any time period specified herein is extended, such extended time shall also be of essence;
- (xi) This Agreement has been negotiated and reviewed by the Parties and the Parties have participated jointly in the negotiation and drafting of this Agreement. Accordingly, in the event any ambiguity or a question of intent or interpretation arises, this Agreement will be construed as drafted jointly by the Parties, and no presumption or burden of proof will arise favouring or disfavouring any Party by virtue of the authorship of any provisions of this Agreement. Additionally, no court or arbitrator construing this Agreement will construe it more stringently against one Party than against the other.

2. GRANT OF OPTION & OPTION TERM

- 2.1 In accordance with the terms and subject to the conditions set out in this Agreement, and subject to Applicable Law, the Company and HIPL hereby grant to the Option Holders a right and option ("**Option**") to acquire, for an aggregate consideration ("**Aggregate Option Consideration**") equal to the higher of: (i) 24% (twenty-four per cent) of the Net Book Value of the Company, determined on a post-money basis after taking into account the aggregate consideration payable by the Option Holders for the Subscription Shares (if any); and (ii) an amount equal to INR 3,00,00,000/- (Indian Rupees Three Crore only), such

number of Equity Shares of the Company through a combination of (A) equity shares to be newly issued and allotted by the Company (“**Subscription Shares**”) and (B) equity shares held by HIPL to be sold by HIPL (“**Sale Shares**”), such number and the proportion as between the Subscription Shares and the Sale Shares being determined by HIPL and the Company and notified to the Option Holders in accordance with Clause 3.2; provided that the aggregate number of Subscription Shares and Sale Shares to be acquired upon exercise of the Option shall constitute up to 24% (twenty-four per cent) of the share capital of the Company on a fully diluted basis as of the Option Closing and shall in no event exceed such 24% (twenty-four per cent) threshold.

- 2.2 The term of the Option granted under this Agreement shall commence on the Execution Date and shall expire and be invalid and unenforceable on the date of expiry of a period of 12 (twelve) months from the Execution Date (“**Option Term**”).

3. EXERCISE OF THE OPTION

- 3.1 Subject to the terms of this Agreement, the Option may be exercised by the Option Holders at any time during the Option Term by delivering to the Company and HIPL an irrevocable written notice (“**Option Exercise Notice**”). An Option Exercise Notice shall be effective only upon actual receipt by both the Company and HIPL.

- 3.2 Within 30 (thirty) days from the date of receipt of a valid Option Exercise Notice, the Company and HIPL shall, after consultation with the Option Holders, notify in writing of: (i) the number of Subscription Shares to be issued and allotted by the Company to the Option Holders; and (ii) the number of Sale Shares to be sold by HIPL to the Option Holders, which together shall constitute the Equity Shares to be acquired upon exercise of the Option in satisfaction of the Aggregate Option Consideration.

- 3.3 Within 90 (ninety) days from the date of receipt of a valid Option Exercise Notice, the Company, HIPL and the Option Holders shall commence good faith discussions with a view to negotiating, finalising and executing:

- (i) a share subscription and share purchase agreement amongst the Parties (“**SSPA**”);
- (ii) a shareholders’ agreement in relation to the Company amongst the Parties (“**SHA**”); and
- (iii) such other agreements, instruments, deeds, waivers, consents and ancillary documents as HIPL and/or the Company may reasonably require in connection with the subscription for the Subscription Shares and/or purchase of the Sale Shares (collectively with the SSPA and the SHA, the “**Definitive Documents**”).

- 3.4 The Parties acknowledge that Ashish may have a role in relation to the Project, its development, implementation and/or operations, after the Option Closing. The nature, scope and terms of any such role of the Option Holder in relation to the Project shall be as mutually agreed between the Parties and shall be set out exclusively in the Definitive Documents, and unless and until so agreed and documented, nothing in this Agreement shall be construed as conferring any role, responsibility, right or entitlement upon Ashish in respect of the Project or the Company.

- 3.5 The Parties acknowledge that the Company is the concessionaire under the Concession Agreement. Accordingly, the Parties agree that: (i) the Definitive Documents shall be negotiated and finalised having due regard to, and in compliance with, the Concession Agreement and all restrictions, conditions and covenants contained therein; and (ii) neither HIPL nor the Company shall be obliged to agree to any provision in the Definitive

Documents which, in its reasonable opinion, is inconsistent with, or may reasonably be expected to result in a breach of, the Concession Agreement or any financing, security, project or other agreement to which the Company or HIPL is a party.

3.6 The obligations of HIPL to sell the Sale Shares and of the Company to issue and allot the Subscription Shares pursuant to the Option are expressly conditional upon and subject to:

- (i) the negotiation, finalisation and execution of the Definitive Documents, each in form and substance satisfactory to each of the Parties, in its own discretion, within 90 (ninety) days from the date of receipt of a valid Option Exercise Notice by HIPL and the Company; and
- (ii) the satisfaction (or waiver by the relevant Party) of all conditions precedent set out in the Definitive Documents (including, where applicable, receipt of all consents, approvals and including from any Governmental Authority, lenders or other third parties), in each case on or before the relevant long stop date specified in the Definitive Documents.

3.7 For the avoidance of doubt, nothing in this Agreement shall: (i) oblige HIPL or the Company to enter into any Definitive Documents if the terms thereof are not acceptable to the Option Holder, HIPL or the Company, respectively, in their sole and absolute discretion; or (ii) give the Option Holder any right to claim specific performance or to compel the execution of any Definitive Documents or the consummation of any subscription or sale of any securities of the Company including Sale Shares and Subscription Shares.

3.8 Notwithstanding anything to the contrary contained in this Agreement, any exercise of the Option by the Option Holders shall: (i) be exercised once only, in a single Option Exercise Notice; and (ii) not be capable of being exercised in part, in tranches, or on multiple occasions.

4. CLOSING

4.1 Subject to Clauses 3.5 and 3.6, the subscription of the Subscription Shares and the sale and purchase of the Sale Shares pursuant to an exercised Option shall be completed on the date and in the manner set out in the Definitive Documents (“**Option Closing**”).

4.2 The Parties acknowledge and agree that, prior to the Option Closing, the Option Holder shall not be entitled to any rights (whether as a shareholder, option holder or otherwise) in respect of the Company, the Subscription Shares and/or the Sale Shares, including any right to dividends, voting or other shareholder rights in the Company.

5. EXPIRY OF THE OPTION & TERMINATION

5.1 If, notwithstanding the delivery of an Option Exercise Notice, all the Definitive Documents in respect of such exercised Option have not been negotiated, finalised and duly executed by all relevant parties within 90 (ninety) days from the date of such Option Exercise Notice (or such longer period as HIPL and the Company may, in their sole discretion, agree in writing):

- (i) the Option Exercise Notice shall, automatically and without any further action by any Party, lapse and be of no further force or effect;
- (ii) the Option shall, as between the Parties, automatically and irrevocably expire and terminate;

- (iii) the Option Holders shall cease to have any rights or entitlements whatsoever under this Agreement including in relation to such Option Exercise Notice or the Company or the underlying Subscription Shares or Sale Shares; and
 - (iv) the Option and this Agreement shall, as between the Parties, stand automatically terminated and lapse with immediate effect, without any further act, deed or formality by any Party.
- 5.2** For the avoidance of doubt, the circumstances referred to in Clause 5.1 may include (without limitation) a situation where the Parties are unable to agree on the terms of the Definitive Documents, or where any required consent or approval is not obtained or is granted on terms not acceptable to HIPL and/or the Company, or where HIPL and/or the Company do not notify the Option Holders of the number and proportion of the Subscription Shares and the Sale Shares in accordance with Clause 3.2, and such circumstances shall not constitute a breach of this Agreement by HIPL and/or the Company.
- 5.3** If the Company and HIPL do not receive the Option Exercise Notice issued by the Option Holders in accordance with this Agreement prior to the expiry of the Option Term, then upon expiry of the Option Term:
- (i) the Option shall automatically and irrevocably lapse and terminate without any further act deed or formality by any Party;
 - (ii) the Option Holder shall cease to have any rights, claims or entitlements whatsoever under or in connection with this Agreement (including any right to subscribe for the Subscription Shares or to purchase the Sale Shares); and
 - (iii) the Option and this Agreement shall, as between the Parties, stand automatically terminated and lapse with immediate effect, without any further act, deed or formality by any Party.
- 5.4** Notwithstanding anything to the contrary contained in this Agreement, each of HIPL and the Company shall have the right, in its sole and absolute discretion, to terminate this Agreement, in whole or in part, at any time by giving written notice to the Option Holder (“**Termination Notice**”), whether such termination occurs prior to or after the delivery of any Option Exercise Notice, but in all cases prior to the execution of the Definitive Documents, if:
- (i) the arrangements contemplated under this Agreement (including the grant or exercise of the Option, the subscription for the Subscription Shares, the purchase of the Sale Shares and/or the resulting shareholding structure) are, or are reasonably likely to be, in contravention of, or be held to be invalid, void, voidable or unenforceable under, any applicable Law; or
 - (ii) such arrangements are, or are reasonably likely to be, in violation of, inconsistent with, or not permitted under, the Concession Agreement or any consent, approval, covenant or restriction thereunder; or
 - (iii) any Option Holder commits any breach of this Agreement (including any failure to comply with its covenants, obligations or undertakings hereunder) and, if such breach is capable of remedy, fails to remedy the same within 5 (five) days of receipt of a written notice from HIPL and/or the Company requiring such breach to be remedied; or

- (iv) any representation or warranty given by any of the Option Holders in or pursuant to this Agreement is, or is discovered to have been, untrue or incorrect; or
- (v) any event, circumstance or change occurs in relation to any of the Option Holders, including in the nature of change of control, insolvency, bankruptcy, liquidation, enforcement action, regulatory or investigative action, or reputation, which, in the reasonable opinion of HIPL and/or the Company, is or is likely to be prejudicial to the interests of HIPL and/or the Company.

5.5 Upon issuance of a Termination Notice in accordance with Clause 5.4:

- (i) this Agreement and the Option shall, subject to Clause 5.7, as between the Parties, stand automatically terminated and lapse with immediate effect, without any further act, deed or formality;
- (ii) notwithstanding anything to the contrary, any Option Exercise Notice already delivered (if any) shall be deemed withdrawn and of no further force and effect; and
- (iii) the Option Holder shall cease to have any rights, claims or entitlements whatsoever under or in connection with this Agreement, the Option, the Subscription Shares or the Sale Shares, including any right to negotiate any Definitive Documents or the completion of any subscription or sale of any securities.

5.6 The Parties expressly agree that notwithstanding anything to the contrary no termination of this Agreement shall give rise to any liability or obligation whatsoever on the part of HIPL, the Company or any of their respective affiliates towards the Option Holder(s) (whether by way of damages, compensation, costs, expenses or otherwise) in respect of, or arising out of, such termination or the non-consummation of the transactions contemplated hereby.

5.7 Notwithstanding anything to the contrary, the following provisions of this Agreement shall survive any expiry or termination of the Agreement: Clause 1, Clause 5.1, Clause 5.3, Clause 5.4, Clause 5.5, Clause 5.6, Clause 5.7, Clause 7, Clause 8, Clause 9, and Clause 10.

6. REPRESENTATIONS AND WARRANTIES

6.1 Each of the Parties represents and warrants to the other Party as follows:

- (i) The relevant Party has the full power, authority and capacity to enter into, execute and deliver this Agreement and to consummate and perform its obligations under the Agreement.
- (ii) The Agreement has been duly and validly executed by the relevant Party, and constitutes, legal, valid and binding obligations of such Party enforceable against it in accordance with its terms.
- (iii) The execution, delivery and performance by the relevant Party of the Agreement and the consummation of transactions contemplated herein do not:
 - (a) conflict with or violate its charter documents, if applicable;
 - (b) conflict with or violate any order, judgment or decree applicable to such Party;

- (c) result in a breach of, or acceleration of any obligation under, any contract to which the relevant Party is a party or the creation of any encumbrance over any assets of the Party; or
- (d) constitute an act of bankruptcy, insolvency or fraudulent conveyance under any bankruptcy act or other applicable Laws.

6.2 The Option Holders have not at any time taken any action, directly or indirectly, or failed to take any action which constitutes a violation of Anti-Corruption Laws, Anti-Money Laundering Laws, or Sanctions Laws.

7. CONFIDENTIALITY AND NON-DISCLOSURE

7.1 Each Party (and each Party shall direct each of its (a) Affiliates, and (b) directors, officers, employees, agents, advisers, accountants and consultants of that Party and/or of its respective Affiliates) shall keep all Information confidential as per the terms of this Agreement and subject to Clause 7.2, shall not, without the prior written consent in writing of the other Parties, divulge the Information to any other Person or use the Information for any purpose.

7.2 The Parties may disclose Information for the purpose of consummation of the transactions contemplated under this Agreement. Additionally, the confidentiality obligations contained herein shall not apply:

- (i) To the extent that such Information is in the public domain other than by breach of this Agreement;
- (ii) To the extent that such Information is required to be disclosed by any applicable Law or requested to be disclosed by any Governmental Authority to whose jurisdiction the relevant Party is subject provided that such disclosing Party shall provide notice of such disclosure to the extent reasonably practicable and legally permitted to the other Parties;
- (iii) To employees, directors, members, officers, partners or advisors of any Party or its Affiliates on a need-to-know basis, subject to the disclosing Party informing such persons of the confidential nature of such Information, and provided that such party shall continue to maintain the confidential nature of such Information on terms at least as strict as set out in this Agreement;
- (iv) To the extent that any Information has been independently developed by a Party without reference to any Information furnished by any other Party hereto;
- (v) In the case of HIPL and the Company, to any direct or indirect shareholders/investors/limited partners/general partners of HIPL subject to the disclosing Party informing such persons of the confidential nature of such Information, and provided that such party shall continue to maintain the confidential nature of such Information on terms at least as strict as set out in this Agreement;
- (vi) In the case of HIPL and the Company, to the extent that any Information is requested or required by CWC under or for compliance with the Concession Agreement;
- (vii) To the extent required by a Party for the enforcements of its rights and obligations under this Agreement, provided that such disclosing Party shall provide notice of

such disclosure to the extent reasonably practicable and legally permitted to the other Parties.

- 7.3** Notwithstanding anything to the contrary in this Agreement, HIPL, the Company and their respective Affiliates may, without the consent of the Option Holders, disclose this Agreement and any information relating to the transactions contemplated herein to any underwriter, arranger, lender (and other potential source of capital), insurer (including insurance broker and re-insurer), agent investor or potential investor (and its advisor, Affiliate, agent), rating agency, adviser (including attorney, accountant, consultant, auditor and financial advisor), stock exchange, governmental, judicial, regulatory or self-regulatory authority, and any actual or potential purchaser, acquirer or bidder (direct or indirect) of any shares or securities of HIPL, the Company or any of their Affiliates, including in any prospectus, offer document, placement memorandum, information memorandum or similar document prepared or filed in connection with any actual or proposed listing, offering, financing or sale of such shares or securities. HIPL, the Company and their respective Affiliates shall have no liability whatsoever to the Option Holders for any such disclosure, and the Option Holders hereby irrevocably waive any claim or objection in respect thereof
- 7.4** No formal or informal public announcement or press release, which makes reference to the terms and conditions of this Agreement or any of the matters referred to herein, shall be made or issued by the Option Holder(s) without the written consent of HIPL and the Company.

8. NOTICES

- 8.1** Unless otherwise stated, all notices, approvals, instructions, demands and other communications given or made under this Agreement shall be in English and in writing and shall be given by personal delivery, or by sending the same by pre-paid registered mail addressed to the relevant Party at its address, or to the email account set out below:

(i) If to Ashish:

Address	Plot No.300, Opp.Hislop College, Chitanvis Marg, Civil Lines, Nagpur - 01
E-mail	ashishagrawal@xsio.in
Attention	Ashish Agrawal

(ii) If to Rajesh Steel:

Address	Rajesh Steel Industries Private Ltd , 402, 4th Floor, M.G. House, RT Road , Civil Lines, Nagpur - 440001.
E-mail	ashishagrawal@xsio.in
Attention	Ashish Agrawal

(iii) If to HIPL:

Address	Tower 1, Floor 15, One World Centre, Lower Parel, Mumbai, 400013
E-mail	kunal.shah@hiparks.com
Attention	Kunal Harun Shah

Copy to:

Address	C/o The Blackstone Group (HK) Limited, Suite 901, 9/F Two IFC, 8 Finance Street, Central, Hong Kong
E-mail	realestateasianotices@Blackstone.com
Attention	Richard Blair

(iv) **If to the Company:**

Address	Tower 1, Floor 15, One World Centre, Lower Parel, Mumbai, 400013
E-mail	kunal.shah@hiparks.com
Attention	Kunal H Shah

8.2 A Party may change or supplement the addresses given above, or designate additional addresses, for purposes of this Clause 8, by giving the other Parties written notice of the new address in the manner set forth above.

8.3 Any notice so served shall be deemed to have been duly given (i) in case of delivery by hand, when hand delivered to the other Party; or (ii) when sent by registered mail, on receipt by the addressee; or (iii) for electronic mail, upon a confirmation of transmission being recorded on the server of the Party sending the communication, unless the Party receives a message indicating failed delivery.

9. DISPUTE RESOLUTION

9.1 If any claim, dispute or difference arise between all or any of the Parties hereto, in connection with the validity, interpretation, implementation or alleged breach of any provision of this Agreement or regarding any question, including the question as to whether the termination of this Agreement by any Party hereto has been legitimate (“**Dispute**”), such Dispute shall be referred, at the request in writing of any Party to the Dispute to final and binding arbitration. In the event of such arbitration:

- (i) The arbitration shall be in accordance with the Arbitration Rules of the Singapore International Arbitration Centre (“**SIAC**”), in force at the relevant time (which rules are deemed to be incorporated into this Agreement by reference);
- (ii) All proceedings of such arbitration shall be in the English language. The venue of the arbitration shall be Singapore, which shall also be the seat of the arbitration;
- (iii) The arbitration shall be conducted before a tribunal (“**Tribunal**”) which consists of 3 (three) arbitrators. The claimant(s) shall nominate 1 (one) arbitrator in the notice of arbitration. The respondent(s) shall nominate 1 (one) arbitrator in the response to the notice of arbitration. The two party-nominated arbitrators shall have 20 (twenty) Business Days to agree, in consultation with the parties to the arbitration, upon the nomination of a 3rd (third) arbitrator to act as presiding arbitrator of the tribunal, barring which the President of SIAC shall select the 3rd (third) arbitrator (or any arbitrator that claimant(s) or respondent(s) fail to nominate in accordance with the foregoing);
- (iv) Arbitration awards shall be reasoned awards and shall be final and binding on the disputing Parties and shall be subject to forced execution in any court of competent jurisdiction. The arbitration award rendered in accordance with this Clause 9 shall be enforceable by any court of competent jurisdiction, including (if and to the extent determined by the Tribunal) by injunctive relief or order for specific performance;
- (v) All claims and counterclaims shall, to the extent such claims or counterclaims are

known at the time any arbitration is commenced and relate to issues which are substantially the same as or connected with issues raised in a Dispute which has already been referred to arbitration under this Agreement or any other Transaction Documents, be consolidated and determined in the same arbitration proceeding;

- (vi) Deposits to cover the costs of arbitration shall be shared equally by the parties thereto. The award rendered by the Tribunal shall, in addition to dealing with the merits of the case, fix the costs of the arbitration and decide which of the parties thereto shall bear such costs or in what proportions such costs shall be borne by such parties;
- (vii) The existence or subsistence of a Dispute or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone the performance of those obligations of Parties under this Agreement which are not in dispute; and
- (viii) Nothing contained herein shall preclude a Party from seeking interim equitable or injunctive relief, or both in relation to any Disputes. Pursuing equitable or injunctive reliefs shall not be a waiver of the right of the Parties to pursue any other remedy or relief through the arbitration described in this Clause 9.

10. MISCELLANEOUS

10.1 Execution

Delivery of an executed signature page of a counterpart by facsimile transmission or in Adobe™ Portable Document Format (PDF) sent by electronic mail shall take effect as delivery of an executed counterpart of this Agreement. If either method is adopted, each Party shall provide the others with the original of such page as soon as reasonably practicable thereafter.

10.2 Counterparts

This Agreement may be executed simultaneously in any number of counterparts, each of which will be deemed an original, but all of which will constitute one and the same instrument.

10.3 Entire Agreement

This Agreement constitutes and contains the entire agreement and understanding between the Parties with respect to the subject matter hereof and supersedes all previous communications, negotiations, commitments, either oral or written, between the Parties with respect to the subject matter hereof.

10.4 Governing Law & Jurisdiction

This Agreement shall be governed in all respects by the laws of India (without reference to its conflict of laws provisions). Subject to the provisions of Clause 9, the Parties agree to be subject to the non-exclusive jurisdiction of the courts in Nagpur, India.

10.5 Severability

Any provision of this Agreement, which is invalid or unenforceable, shall be ineffective to the extent of such invalidity or unenforceability, without affecting in any way the remaining provisions hereof. If for any reason whatsoever, any provision of this Agreement is or

becomes, or is declared by a court of competent jurisdiction to be, invalid, illegal or unenforceable, then the Parties will negotiate in good faith to agree on such provision to be substituted, which provisions shall, as nearly as practicable, leave the Parties in the same or nearly similar position to that which prevailed prior to such invalidity, illegality or unenforceability.

10.6 Amendments

No change, alteration, modification or addition to this Agreement shall be valid unless in writing and properly executed by the Parties hereto.

10.7 Rights Cumulative

- (i) The rights, powers, privileges and remedies provided in this Agreement are cumulative, are not exclusive of any rights, powers, privileges or remedies provided by applicable Law or otherwise.
- (ii) No failure to exercise nor any delay in exercising any right, power, privilege or remedy under this Agreement shall in any way impair or affect the exercise thereof or operate as a waiver thereof in whole or in part.
- (iii) No single or partial exercise of any right, power, privilege or remedy under this Agreement shall prevent any further or other exercise thereof or the exercise of any other right, power, privilege or remedy.

10.8 Successors and Assigns

No rights, liabilities or obligations under this Agreement shall be assigned by the Option Holder without the prior written consent of HIPL and the Company.

10.9 Costs and Expenses

- (i) Except as otherwise provided in this Agreement, each Party shall pay its own expenses in connection with the preparation and performance of this Agreement and the consummation of the transactions contemplated hereby, including without limitation, all fees and expenses of legal and financial advisors, independent accountants and actuaries.
- (ii) All statutory costs and expenses (including payment of applicable stamp duty) incurred in respect of or relating to this Agreement shall be borne by the Company.

10.10 No Waiver

No waiver of any provision of this Agreement or consent to any departure from it by any Party shall be effective unless it is in writing and signed by a duly authorized representative of the concerned Party. A waiver or consent shall be effective only for the purpose for which it is given. No default or delay on the part of any Party in exercising any rights, powers or privileges operates as a waiver of any right, nor does a single or partial exercise of a right preclude any exercise of other rights, powers or privileges.

10.11 Further Assurances

The Parties shall execute other documents, cause meetings to be held, cause resolutions to be passed, exercise their votes and do and perform, and cause to be done and performed such further acts and things as may be necessary or desirable in order to give full effect to

this Agreement and the transactions contemplated under this Agreement.

10.12 Relationship of the Parties

The Parties are independent contractors. None of the Parties shall have any right, power or authority to enter into any agreement for or on behalf of, or incur any obligation or liability of, or to otherwise bind, the other Parties except as specifically provided by this Agreement. Nothing in this Agreement shall be interpreted or construed to create an association or partnership between the Parties, deem them to be persons acting in concert or to impose any liability attributable to such relationship upon any of the Parties nor, unless expressly provided otherwise, to constitute any Party as the agent of any of the other Parties for any purpose.

IN WITNESS WHEREOF, the Parties hereto, acting through their duly authorized officers or representatives, have caused this Agreement to be signed in their respective names as of the date first above written.

SCHEDULE I

PARTICULARS OF SHARE CAPITAL AND SHAREHOLDING

Equity Shares		
S. No.	Name of shareholder	No. of Equity Shares
1.	HIPL	999
2.	BREP Asia III India Holding Co III Pte. Ltd. (nominee of HIPL)	1
Total		1,000

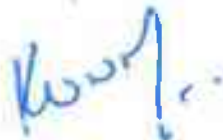
Compulsorily Convertible Debentures ("CCDs")		
S. No.	Name of CCD holder	Number of CCDs
1.	HIPL	10,210,000
Total		10,210,000

[Signature pages follow]

**IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT
ON THE DATE AND YEAR FIRST ABOVE WRITTEN**

Signed and delivered for and on behalf of

HORIZON INDUSTRIAL PARKS LIMITED



Authorised Signatory

Name: Mr. Kunal H. Shah

Designation: Authorised Signatory

**IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT
ON THE DATE AND YEAR FIRST ABOVE WRITTEN**

ASHISH AGRAWAL

**IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT
ON THE DATE AND YEAR FIRST ABOVE WRITTEN**

Signed and delivered for and on behalf of

RAJESH STEEL INDUSTRIES PRIVATE LIMITED

Authorised Signatory

Name: Abhishek Mohan Agrawal

Designation: Director

**IN WITNESS WHEREOF THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT
ON THE DATE AND YEAR FIRST ABOVE WRITTEN**

Signed and delivered for and on behalf of

ALOTRONIX WAREHOUSING SEVEN PRIVATE LIMITED

Kunal



Authorised Signatory

Name: *Mr. Kunal H. Shah*

Designation: *Authorised Signatory*